



EAGLE MOUNTAIN PLANNING COMMISSION MEETING MINUTES

January 10, 2023, 5:30 p.m.
Eagle Mountain City Council Chambers
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

COMMISSION MEMBERS PRESENT: Jason Allen, Jeremy Bergener, Matthew Everett, and Commissioner Brent Strong. Commissioner Christopher Pengra was excused.

ELECTED OFFICIALS PRESENT: Councilmember Brett Wright.

CITY STAFF PRESENT: Steve Mumford, Assistant City Administrator/Community Development Director; Todd Black, Wildlife Biologist/Environmental Planner; Robert Hobbs, Planning Manager; David Stroud, Senior Planner; and Marcus Draper, City Attorney.

CITY STAFF PRESENT ELECTRONICALLY: Elizabeth Fewkes, Recording Secretary.

5:30 P.M. – Eagle Mountain City Planning Commission Work Session

1. Discussion Items

1.A. RULES OF PROCEDURE

Commissioner Everett explained the history of the Planning Commission Rules of Procedure and the annual review by the Planning Commission.

The Commission discussed the number of votes necessary to constitute a recommendation of approval to the City Council, material submission deadlines, and Commissioners being given the opportunity to clarify their reason for voting against a recommendation of approval. No amendments to the document were proposed.

Commissioner Everett adjourned the work session at 5:51 p.m.

6:30 P.M. – Eagle Mountain City Planning Commission Policy Session

Commissioner Everett called the policy session to order at 6:31 p.m.

2. Pledge of Allegiance

Commissioner Everett led the Pledge of Allegiance.

3. Declaration of Conflicts of Interest

None.

4. Approval of Meeting Minutes

The December 13, 2023 minutes will be approved during the January 24, 2023 meeting.

5. Status Report

Assistant City Administrator/Community Development Director Steve Mumford reviewed the planning items discussed and voted upon during the January 3, 2023 City Council meeting.

6. Action and Advisory Items

6.A. ACTION ITEM – ANNUAL PLANNING COMMISSION OFFICERS ELECTION

MOTION: *Commissioner Allen moved to appoint Matthew Everett as the Planning Commission Chairman for 2023. Commissioner Bergener seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
☒ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>
☒ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>
☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☒ <i>Chris Pengra</i>
☒ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>

The motion passed with a unanimous vote.

MOTION: *Commissioner Allen moved to appoint Jeremy Bergener as the Planning Commission Vice Chairman for 2023. Commissioner Everett seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
☒ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>
☒ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>
☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☒ <i>Chris Pengra</i>
☒ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>

The motion passed with a unanimous vote.

6.B. ACTION ITEM – PUBLIC HEARING: LOWER HIDDEN VALLEY MASTER DEVELOPMENT PLAN & AGREEMENT AMENDMENT

Planning Manager Robert Hobbs presented the request for approval to modify both a Master Development Plan (MDP) and associated Master Development Agreement (MDA) for 244.96

acres of land zoned Residential in the Hidden Valley development area in order to allow re-configuration of a previously approved project layout. The applicant is entitled to 1,256 residential dwelling units on the property and proposes dividing the project into 13 phases. The applicant intends to provide 24 acres of improved open space within the project, 67 acres of native open space, and 6,000 linear feet of paved community trails. A 38.44-acre portion, Parcel 58:040:0634, of the developable and open space area proposed for build-out within Lower Hidden Valley is currently owned by the City of Eagle Mountain. The applicant proposes the purchase of the parcel and dedication back of a portion of the parcel to the City along with an improved trailhead. The purchase or disposal of this parcel will require a separate process and action by the City Council.

The City's new wildlife corridor covers some of the property intended for development. The applicant has expressed a willingness to assist the City in providing a protected deer migration route through the project by use of fencing consisting of 8-foot poles with hog-wire and controlled access points or gates. The proposal envisions detached housing, townhomes, tri-plexes, and cluster housing. The applicant intends to use 51-foot rights-of-way for local roads within the project in lieu of the City's newly adopted 59-foot roads to facilitate the preservation of more detached residential product. The applicant is requesting exemptions from current setback standards and the approval of some 40-foot frontages for certain building lots.

Mr. Hobbs presented suggestions for the project made by the Eagle Mountain Nature and Wildlife Alliance and a map of existing bike trails in the area provided by Adam Clark, President of the Lake Mountain Trails Association and the President of the Lake Mountain Bicycle Club which includes the West Lake and Cedar Valley high school mountain bike teams

Wildlife Biologist/Environmental Planner Todd Black explained that the location of the proposed wildlife corridor was determined by the migration data collected from GPS-collared deer. He has worked with the developer to find a compromise to provide for deer movement through the area. He said the mountain bike trails both on the private and City property are unauthorized as they were never reviewed by or received approval from the Planning Commission and City Council or the Parks and Recreation Department. Alternate connecting bike trails could be moved to land designated as open space in the existing MDA.

Mr. Mumford stated that Mr. Clark said he had received approval to use the land for mountain bike trails. He will meet with Mr. Clark and City Administration to determine the status of the approval of the trails on the City property. He recognized the benefits of the mountain bike trails to residents and people outside of the City. Hopefully, solutions can be reached to preserve or relocate the trails. The City plans on creating a connected trail system and wildlife corridor in the area. The landowner has vested rights predating the approval of the wildlife corridor overlay and the installation of the trails.

Mr. Hobbs explained that street parking along both sides of a public road is permitted unless the City decides to prohibit parking. The approved MDA allows a five-foot side setback with a combined 15-foot setback for both sides of the unit with the allowance of minor deviations to adapt to topographical obstacles.

Applicant representative Dan Reeve explained the proposed amendment is in response to the City's request to accommodate the wildlife corridor. Otherwise, they are amenable to developing the property with their existing entitlements. As discussed in a previous meeting, they have reduced and relocated the highest-density product near transportation corridors. The 51-foot right-of-way and five-foot side setbacks are necessary to reduce the density and provide for an increase in single-family homes; both are common development standards in other communities.

Commissioner Everett opened the public hearing at 7:07 p.m.

Dayna Koch, Adam Clark, James Duncan, Beau Campbell, Janae Aiken, Molly Duncan, Matthew Campbell, Dacia Rocha, Steve Duncan, and Brad Barlow shared personal experiences about the benefits of mountain biking and the Eagle Mountain biking community including the high school teams; spoke against the sale of the City-owned parcel to the developer; and requested for the City and the developer to retain or replace as many of the trails as possible.

Bettina Cameron and Marian Burningham, speaking on behalf of the Eagle Mountain Nature and Wildlife Alliance, and Karina Woodbury voiced objection to the proposal and support of working with the developer on an alternative plan to preserve the wildlife corridor and the mountain bike trails.

The City received emails against the proposal from Mary Kunz, Ross Dinsdale, and Challin Peterson.

Jeff Ruth spoke against the proposal and building on mountainsides and in favor of preserving the wildlife corridor and bike trails.

Commissioner Everett closed the public hearing at 8:00 p.m.

The Commissioners individually expressed appreciation to the public for their participation and comments.

Commissioner Allen noted that he had spoken with Mr. Clark earlier in the day and had received the mountain bike map presented in the meeting. He thanked the residents for their desire to work with the developers to find solutions. Mountain biking is a unique feature of the City that he would like to see preserved. He suggested making mountain biking a part of the City's brand by hosting races and working with the Chamber of Commerce to incorporate subsequent economic opportunities.

Mr. Reeve said that due to the time spent on the application process and time limits, should the item be tabled at this meeting, they would withdraw the application and move forward with their existing entitlements. However, they are willing to incorporate adjustments to the alignment of the corridor if the City is amenable to the changes. The original plan would create a choke point at a critical location in the migration corridor that the new proposal resolves. They do not plan to build on the hillside. He clarified that Perry Homes has never given permission to build and use trails on their land and the no-trespassing signs they put up have been removed by other parties. Due to topography limitations, the areas with trails on buildable land will be developed. Nevertheless,

they are willing to install trailheads and preserve as many of the trails as possible. They will begin construction along Pony Express Parkway later this year as soon as they have final plat approvals. The length of time to complete the project will be impacted by market demand. The amount of land that would be dedicated as wildlife corridor would exceed the size of the 38.44-acre, City-owned parcel.

Discussion ensued clarifying the paths of current wildlife migration in comparison to the proposal, the plans for an overpass at the critical point identified by the applicant, and wildlife fencing costs.

Mr. Mumford explained the history of Hidden Valley resulting in the division of the land into Upper and Lower Hidden Valley developments by the involved parties. The City-owned parcel had been a part of the original Hidden Valley plan but was not included in a development agreement. The parcel was purchased by the City when the landowner defaulted on special improvement district payments levied due to infrastructure improvements beneficial to the property.

Commissioner Everett acknowledged the number of competing interests with the project. Relocating the higher-density units closer to the main roadways would help alleviate traffic congestion and would be ideal. During the review and amending of City road standards, he learned that there is no universal road width standard. Regardless of his personal preferences, the City Council has decided upon a 59-foot local right-of-way standard that should be met. He explained one of the purposes of the 8-foot and 10-foot side setbacks requirement is to provide access to the backyard for recreational vehicle storage or accessory dwelling units. He is not amenable to five-foot setbacks or 40-foot frontages. The previous Tier II standards have a minimum frontage of 55 feet. He refrained from commenting on the sale of the City-owned parcel as it is outside the purview of the Planning Commission. His preference would have been to table the item and ask the applicant to work with the stakeholders had the applicant not requested for the item to move forward to the City Council.

Commissioner Bergener noted the Commission is tasked with evaluating a decision made 12 years ago and the resulting rights held by the applicant. Eagle Mountain has unique features that residents love such as the mountain biking trails and wildlife that they want to protect and preserve.

Commissioner Strong agreed with the benefit of moving the density closer to major thoroughfares but he is against more narrow roads and setbacks.

MOTION: *Commissioner Bergener moved to recommend denial to the City Council of the amendment to the Lower Hidden Valley Master Development Plan and Master Development Agreement. Commissioner Allen seconded the motion.*

Commissioner Bergener clarified that the recommendation of denial is due to the applicant's desire for the application to move forward to the City Council. He hopes for all parties to work together to find a better solution.

Those Voting Yes
☒ *Jason Allen*

Those Voting No
☐ *Jason Allen*

Those Abstaining
☐ *Jason Allen*

Those Absent
☐ *Jason Allen*

☒ Jeremy Bergener	☐ Jeremy Bergener	☐ Jeremy Bergener	☐ Jeremy Bergener
☒ Matthew Everett	☐ Matthew Everett	☐ Matthew Everett	☐ Matthew Everett
☐ Chris Pengra	☐ Chris Pengra	☐ Chris Pengra	☒ Chris Pengra
☒ Brent Strong	☐ Brent Strong	☐ Brent Strong	☐ Brent Strong

The motion passed with a unanimous vote.

6.C. ACTION ITEM – PUBLIC HEARING: FIREFLY MASTER DEVELOPMENT

Mr. Hobbs presented the request for approval to modify both a Master Development Plan (MDP) and associated Master Development Agreement (MDA) pertaining to 2,764.51 acres of land zoned Residential in the Pole Canyon development area in order to allow re-configuration of a previously approved layout that included 9,659 residential dwelling units. A vested development agreement contract is in force on the 2,764.51-acre property zoned Residential which allows up to 9,659 residences. It is proposed now that residences be placed within one of 13 neighborhood planning areas. The overall residential unit count per acre in Firefly is noted as 3.47 dwelling units per acre. The applicant also proposes 154.40 acres of commercial land and 494.84 acres of industrial ground. Commercial and industrial areas are in the existing agreement. The new MDP for Firefly contemplates the movement of 1,358 homes from the west side of SR-73 over to the east side. The Housing within the Project will be a mixture of detached housing, twin homes, townhomes, condominiums, apartments, shared-drive housing, and commercial buildings. The Applicant is asking for 5-foot side setbacks for some homes. Tier II is presently thought to be the most comparable stratus to use to compare to what is proposed in the majority of Firefly's neighborhood planning areas for detached housing product construction. In Tier II standards, side setbacks were 5 feet and 10 feet on the garage side of a house and a local right-of-way width of 55 feet.

Per the proposed, amended agreement the applicant intends to provide over 420 acres of improved open space, with a mix of parks, trails, and open land. More specifically, the applicant has indicated that the project is intended to feature:

- A contiguous trail system that will connect the furthest southeast corner of the property to the very northwest corner. Nearly all neighborhoods will have trails that will connect to the main trail system providing a truly walkable community.
- Pocket parks in NPAs (neighborhood planning areas) have been combined to provide larger parks which will allow for greater programming and maintenance efficiencies.
- Three initially planned parks or amenity areas have a wide range of activities programmed such as a tournament-style multi-sports field, pickleball and basketball courts, a park with a skateboard and pump track, traditional playgrounds, climbing walls, NICA high school/mountain bike course, downhill mountain bike facility, amphitheater(s), roadway underpass for safe walking between parks, a homeowner's association (HOA) maintained indoor/outdoor playground with amusement park style play areas, large-scale splash pad for Firefly residents, hiking trails, mountain bike trails, equestrian trails, an HOA-maintained community campground open to Firefly and Eagle Mountain City residents, agricultural and equestrian area, and a 4H/FFA/high school rodeo practice area.

The applicant is proposing an expedited review process in the new MDA for those entitlements or subdivisions that come after approval of the Amended Plan and Development Agreement.

Applicant representative Nate Shipp spoke about the history of the project. He explained the acreage has increased because they purchased additional land to make the project contiguous. However, the number of residential units has remained the same. The proposal relocates 27% of the density from the west side of the highway near White Hills to the east side of the project. The Firefly MDA envisions the project as a whole rather than individual NPAs used in the original Pole Canyon MDA. The open space and amenity standards surpass the requirements. They are working in partnership with the City to construct a water tank large enough to exceed the needs of their community to benefit other residents. Otherwise, Eagle Mountain would need to construct a separate tank to meet water needs. The school site cannot be finalized until the amendment to the MDP and MDA is approved or they decide to move forward with the existing approvals. Church and additional school sites are anticipated and they are in conversations with both public and private schools. Businesses have expressed interest in the area but share Tyson Foods' concerns about the lack of employee housing. They are anxious to begin as soon as possible to hopefully start construction on homes this fall and hold a grand opening at the beginning of next year.

Applicant representative David Vitek presented an overview of the project with a vision to promote the mental and physical well-being of the residents, particularly the youth, by offering recreational opportunities through the amenities such as trails, parks, and open space.

Mr. Shipp clarified that Park A will be a public park open to all residents and maintained by the City. Park B with an indoor facilities will be private and maintained by the homeowner's association. The mountain bike park and rodeo area will be partially publicly and privately maintained.

Commissioner Everett opened the public hearing at 9:24 p.m.

Bruno Hunsaker, a White Hills resident, spoke in favor of the Firefly MDA as preferable to his neighborhood and hopes the setbacks on the new homes will be in harmony with the design of the existing ones. He said the developer has installed an emergency secondary access on SR 73 and verbally agreed to prioritize the State's requests to add a turnout lane and align the access with other roadways once construction begins on the project.

Adam Clark said he loves the creativity put into the plan. He supports the proposal for the mountain bike trails and connection with Bureau of Land Management land. However, he is unsure if the acreage is sufficient for the types of courses mentioned and is concerned about trail maintenance responsibilities. He requested to be involved in the planning process as the mountain biking groups he is a member of will use and likely assist with maintaining the trails.

Commissioner Everett closed the public hearing at 9:30 p.m.

Commissioner Allen stated that although he likes the creativity of the plan, as he received the traffic study yesterday, he feels he has had inadequate time to study the full proposal. Due to the size and scope of the development, he requested additional time for the Commission and City

Attorney to review the materials. He is willing to entertain the possibility of expedited review of some plan aspects but thinks the potential impacts of certain plans, particularly the commercial, merit full review by the Planning Commission and City Council.

Commissioner Bergener said he appreciates the work put into the proposal and the vision, connectivity, and feel of the project. He agrees that due to the volume of documents, he has had insufficient opportunity to properly review and consider the proposal and the requested standard exemptions.

Commissioner Strong concurred. He acknowledged the applicant's desire to move forward on the project. He requested that the applicant submit timeline proposals to help the City mitigate onerous delays in the approval process.

Commissioner Everett cited the Rules of Procedure submission deadline of noon on the Wednesday prior to the meeting for application packet materials. The item can be pulled from the agenda due to late material submission or be tabled immediately without a presentation or holding a public hearing. He also was unable to review the materials submitted yesterday. As such, he thinks it would be inappropriate for the Planning Commission to make a recommendation on an item that they have been unable to evaluate completely and supports allowing time for the City Attorney to review the materials. He recognized the time and thought put into the proposal and does not desire to delay the project unnecessarily but feels a project of this size should be thoroughly and carefully considered and perfected as much as possible. His main concerns with the proposal are the reduced side setbacks and road widths.

MOTION: *Commissioner Everett moved to table the Firefly Master Development Plan to the next meeting amenable to the applicant to allow time for the Planning Commission to review the traffic study and the master agreement amendments and for the City Attorney to review the item. Commissioner Bergener seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
☒ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>
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☒ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>

The motion passed with a unanimous vote.

The meeting was recessed from 9:42 to 9:52 p.m.

6.D. ACTION ITEM – PUBLIC HEARING: PRELIMINARY PLAT APPROVAL OF LONE TREE F-3 SUBDIVISION

Senior Planner Dave Stroud presented the item. The project has been reviewed by the development review committee. The plat configuration is in conformance with platting and residential zone standards. The proposed F-3 plat is a continuation of the existing Lone Tree plats. F-1 contains 21 lots and F-2 contains 18 lots and the detention basin/open space lot. The subject property was considered with 17 lots at a previous preliminary plat approval but was subsequently removed from approval and subject to approval at a later date. The plan requires an additional 3,920 square feet of open space and eight amenity points or the payment of a fee in lieu of \$18,307.90. Rosewood Drive will connect to the adjacent Circle 5 Ranch project when that area is developed.

Staff recommends the Planning Commission motion to recommend approval of Lone Tree F-3 Preliminary Plat, for the reasons set forth in the staff report and the meeting and the following condition:

1. Correction of, if any, outstanding redlines.

Applicant representative Brian Haskell explained that the lots in this part of the project had previously been removed due to concerns with blasting and the road configuration in order to move forward with the rest of the project with the intention to return to the plan for this area at a later date. Because of City requirements, they are unlikely to use blasting and can develop the plat through excavation. Analysis of the slopes deemed the lots as buildable in accordance with Municipal Code. They are also the homebuilder for the development and plan to design custom homes consistent with the grade of the individual lots. The lot sizes are compatible with the adjacent lots, meet zone size requirements, and transition to the larger lots on the hill. The design of the road follows the topography of the area, falls under the maximum slope allowance, and will connect with the adjacent approved Circle 5 Ranch preliminary plat.

Commissioner Everett opened the public hearing at 10:06 p.m.

Nate Riggle said that he and his wife are concerned about additional homes being built before a secondary exit is built for Lone Tree.

Ben Watson stated he had been worried about blasting and appreciates that the applicant plans to excavate the site. He echoed concerns about the lack of a secondary access for Lone Tree and the development impeding the wildlife corridor.

Scot Hazard, the owner of the property to the east, requested for the Planning Commission to only entertain plans that provide connectivity compatible with other approved developments.

Dave Peterson spoke against the City permitting blasting and is concerned about additional homes reducing water pressure.

Jami Garcia said her home has been damaged by blasting in other areas in their neighborhood. She feels the proposed road will create a blind corner resulting in deadly safety hazards.

Karina Woodbury said the fire marshal has previously said that Lone Tree already exceeds the safety capacity standards requiring a secondary access regardless of Rosewood Drive connecting to the adjacent neighborhood. She beseeched the City to not approve any additional homes until

the Old Airport Road connection is completed. She thinks the turn radius is insufficient for fire trucks.

Commissioner Everett closed the public hearing at 10:18 p.m.

Mr. Stroud explained that the City is unable to require the wildlife corridor to be preserved in this plat. The fire marshal and engineering reviewed and approved the proposed road layout.

Commissioner Everett noted that the City Council passed an ordinance requiring permits for blasting. His preference is to find alternatives to blasting whenever possible for the benefit of the residents in areas with existing homes. The fire marshal evaluates and makes a recommendation on proposals before the plans reach the Planning Commission and he defers to the fire marshal's judgment. He believes the fee in lieu is more beneficial and appropriate in cases like this plat rather than requiring a poor-quality amenity that will likely be underutilized.

MOTION: *Commissioner Bergener moved to recommend approval to the City Council of the preliminary plat for Lone Tree F-3 with the following conditions:*

- 1. The correction of, if any, outstanding redlines; and*
- 2. A plan for the connectivity of Rosewood Drive with the adjacent property shall be in place.*

Commissioner Strong seconded the motion.

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
☒ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>
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☒ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>

The motion passed with a unanimous vote.

6.E. ACTION ITEM – PUBLIC HEARING: DEVELOPMENT CODE AMENDMENTS - TITLE 17 - RELIGIOUS OR CULTURAL MEETING HALLS

Mr. Stroud presented the item. A church wishes to locate in the Rush Creek plat but the use is not compatible with the current Light Manufacturing/Distribution (LMD) zone. Religious uses in prohibited zones have been litigated across the nation with favorable rulings on behalf of the religious organization. While not a large demand in Utah, many churches use this type of zone as a start-up location due to lower lease cost which then provides the organization time to accrue funds to be at a financial level to build a permanent location or lease a larger site. Staff discussed amending EMMC with legal counsel and while a rezone is possible, it would still be adjacent to the LMD zone. Due to case law and protecting religious land uses, the option to permit in any zone is the preferred direction as it eliminates any potential discrimination issue and any legal challenge.

EMMC currently permits religious or cultural meeting halls as a permitted use in any commercial zone, a special permitted use in residential zones and the public facilities zone, and conditional (permitted) use in an agriculture zone. The proposed changes amount to permitting the use in the Light Manufacturing/Distribution zone, Medical/Educational Campus zone, Office Professional zone, and Public Facilities zone. In residential zones, the use changes from permitted with special standards to permitted. Agriculture zones would change from conditional to permitted. The subject use is permitted in commercial zones. The proposed change also eliminates the standards of EMMC 17.75 Standards for Special Uses regarding religious or cultural meeting halls since the additional special standards are not unique and only state the use is to meet the parking, lighting, and landscaping applicable to any non-residential use. Unlike other uses with special standards found in EMMC 17.75, there are no special standards required of a religious or cultural meeting hall.

Discussion ensued regarding the current standards for approval of religious and cultural meeting halls and case law protecting the rights of religious gathering places.

Commissioner Everett opened the public hearing at 10:32 p.m. As there were no comments, he closed the public hearing.

MOTION: *Commissioner Allen moved to recommend approval to the City Council of the amendment to Eagle Mountain Municipal Code 17 Religious or Cultural Meeting Halls. Commissioner Everett seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
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☒ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>

The motion passed with a unanimous vote.

6.F. ACTION ITEM – PUBLIC HEARING: REZONE OF ~82 ACRES OF PARCEL 59:058:0004 FROM THE AGRICULTURE ZONE TO THE LIGHT MANUFACTURING/DISTRIBUTION ZONE

Mr. Stroud presented the item. The applicant requests the City amend the zoning map from Agriculture to Light Manufacturing/Distribution. The request encompasses approximately 82 acres and is located on the west side of Virtual Drive and just west of the Facebook campus. The applicant has submitted a concept plan of the potential use with 14 lots of 4 to 5 acres each. EMMC 16.10.020 states that projects in excess of 50 acres require master development approval.

However, EMMC 16.10.050 does provide an option to waive the master development plan requirement. The City Council may approve a request for waiver of either element of the application or master development plan requirement if finding one or more of the following:

1. The project's concept plan review (pursuant to Chapter 16.15 EMMC) received feedback from the Planning Commission and/or City Council in regards to reduced master development application requirements;
2. The project will not require modification or additions to existing conditions (zoning designation, land use designation, roadways);
3. The project involves limited development requirements for infrastructure; or
4. The strict application of this chapter would result in peculiar or exceptional difficulties, or exceptional and undue hardship, or the buildable area of the property is significantly reduced by topography or preexisting easement restrictions.

The applicant has submitted a request based on #3 and part of #4. Infrastructure is in place via Virtual Drive and the future installation of the north and south roads. Future access to all adjacent properties will be provided.

Applicant representative Nate Walter explained they are requesting a waiver of the master development agreement approval process as most of the elements do not pertain to the type of development they desire.

Commissioner Everett opened the public hearing at 10:38 p.m. As there were no comments, he closed the public hearing.

MOTION: *Commissioner Everett moved to recommend approval to the City Council of the rezone of approximately 82 acres from Agriculture to Light Manufacturing/Distribution and recommend that the City Council waive the master development application process as the project involves limited development requirements for infrastructure. Commissioner Allen seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
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☒ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>

The motion passed with a unanimous vote.

7. Next scheduled meeting: January 24, 2023

8. Adjournment

MOTION: *Commissioner Bergener moved to adjourn at 10:42 p.m. Commissioner Allen seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
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☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
☒ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>
☒ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>
☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☒ <i>Chris Pengra</i>
☒ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>

The motion passed with a unanimous vote.

The meeting was adjourned at 10:42 p.m.

Approved by the Planning Commission on January 24, 2023.


Steve Mumford (1/24/2023 11:21 MS)

Steve Mumford, AICP
 Assistant City Administrator/Community Development Director

01.10.23 PC Approved Minutes

Final Audit Report

2023-01-25

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